

25STCV02236 25STCV02236

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-19

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F19%2F2026

Source SHA-256: 3afb55d605d80951a00b06002900db8059adea98df7144df4964ab5cbd678315

Case Number: 25STCV02236 Hearing Date: August 19, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV02236

CONNIE

DANESE vs HILLEL NACHUM, et al.

August

19, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT HILLEL NACHUM'S MOTION TO QUASH DEPOSITION SUBPOENA FOR PERSONAL APPEARANCE TO PERSON MOST QUALIFIED/CUSTODIAN OF RECORDS FOR LA TAX SERVICE.

RULING:

The Motion is granted in part, by limiting the subpoena, and not quashing it.

The Court limits the subpoena to only the requested tax and financial information that is directly relevant to whether Defendant offered the subject property accommodations again for rent for residential purposes, within two years of the date of withdrawal from the rental market, including whether Defendant's children ever paid rent to live at the subject property within that two-year span.

Further, the Court enters a Protective Order providing that Plaintiff shall maintain the confidentiality of any tax-return-privileged or financial information obtained pursuant to this Order and shall refrain from using such information for purposes other than for this case.

Defendant to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on July 31, 2025.

On July 14, 2026, HILLEL NACHUM (Defendant) filed the Motion to Quash Deposition Subpoena for Personal Appearance to Person Most Qualified/Custodian of Records for La Tax Service, as overly broadly involving the Tax Return Privilege, such that a detailed Protective Order should be entered.

Plaintiff opposes, based on arguments that the information is relevant to the issue whether the rental was returned to the rental market, under the Ellis Act.

II.

LEGAL STANDARD

A court may quash a subpoena entirely or partially, and issue an order to protect parties,

witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) “[U]pon motion reasonably made by the party,’ judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583 [emphasis in original].)

“Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice” for showing direct relevance as to private information sought in discovery. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1017-1020 [directing trial court to grant motion to quash as to discovery request that was not narrowly drawn to enable the court to evaluate the appropriate extent of disclosure]. Cf. Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App. 5th 1011, 1038 [“defendants have not shown that these broad categories are reasonably calculated to lead to the discovery of admissible evidence. Moreover, even if these categories do contain some records that would be discoverable, their probative value is vastly outweighed by the privileged and private nature of the other records swept up in the production.”].)

A court may abuse its discretion in denying requests for discovery, or in granting a motion to quash, where it fails to consider interests favoring disclosure, or an order partially limiting rather than outright denying discovery. (Johnson v. Superior Court (2000) 80 Cal.App.4th 1050, 1073 [reversing trial court order quashing entirely deposition notice, and instead ordering discovery of private medical history, but only to the extent relevant], disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) A blanket protective order against a deposition may be an abuse of discretion, and privilege objections can be raised question-by-question. (Meritplan Ins. Co. v. Superior Court (1981) 124 Cal.App.3d 237, 242.) “[A] trial court may issue a protective order conditioning discovery ‘on terms and conditions that are just’ such as requiring confidentiality and prohibiting use outside a given case.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 549.)

III.

ANALYSIS

Defendant contends that Plaintiff served LA Tax Service with a Deposition Subpoena, without any reasonable justification to depose representatives with LA Tax Service, or to invade Defendant's taxpayer privilege. Defendant further emphasizes that Plaintiff has not accepted an offered production pursuant to a stipulation to a protective order.

Plaintiff counterargues that the requested information is directly at the heart of this case, since a violation of the Ellis Act occurs by renting a property removed from the rental market, citing *Cameron v. Las Orchidias Properties, LLC* (2022) 82 Cal.5th 481, 504-506.

There is a qualified privilege to withhold disclosure of tax returns, which is subject to implied waiver. (E.g., *Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 482 [potential relevance alone does not render the tax-return privilege inapplicable]; *Weingarten v. Superior Court* (2002) 102 Cal.App.4th 268, 274; *Deary v. Superior Court* (2001) 87 Cal.App.4th 1072, 1079 [tax return privilege is derived from Revenue and Taxation Code and is inaccurately referred to as a constitutional right of privacy]; *Schnabel v. Superior Court* (1993) 5 Cal.4th 704, 721; *Wilson v. Superior Court* (1976) 63 Cal.App.3d 825, 831 ["Having initiated this action over her tax returns, plaintiff cannot interdict legitimate defenses thereto by asserting a privilege as to the very matters she has placed at issue in the litigation."].) Information that is an integral part of tax returns, or contained in tax returns, qualifies for the tax privilege, including documents that are required to be attached to income tax returns. (*Brown v. Superior Court* (1977) 71 Cal.App.3d 141, 143-144.) "[T]he [tax return] privilege is waived or does not apply where (1) there is an intentional relinquishment ..., (2) the 'gravamen of (the) lawsuit is so inconsistent with the continued assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived ..., or (3) a public policy greater than that of confidentiality of tax returns is involved' (*Sammut v. Sammut* (1980) 103 Cal.App.3d 557, 560.) (Underscoring added.)

"[S]ection 7060.2(b)(1) affords tenants displaced by an Ellis Act eviction a monetary remedy when the property owner offers the accommodations again for rent for residential

purposes within two years of the withdrawal date. Section 7060.2(b)(3) governs a tenant's right of first refusal if the accommodations are returned to the rental market within two years." (Maarten v. Cohanzad (2023) 95 Cal.App.5th 596, 617.)

Here, the subpoena is far too broadly worded to seek tax return information, whereas the Plaintiff's Ellis Act claim narrowly relates to whether Defendant offered the accommodations again for rent for residential purposes within two years of the withdrawal date. Specifically, Plaintiff is seeking information following testimony that, "Defendant unequivocally swore that his daughter Nichole Nachum paid him \$2,500 per month in rent to occupy her unit at the Subject Property." (Opposition, 2:19-20.) So, for getting relevant information, Plaintiff only needs tax return information directly related to any collection of rent for the same building accommodations within two years of withdrawal from the rental market. But, predictably, most of the broadly requested tax information would have no bearing about whether, "Defendants are attempting to manufacture a defense here that they did not return the Property to the rental market because they have no collected rent." (Opposition, 3:26-4:1).

IV.

CONCLUSION

Accordingly, the Motion is granted in part, as specified herein.